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County: los-angeles

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Case Number: 24BBCV00120 Hearing Date: June 26, 2026 Dept: A

MOTION FOR RECONSIDERATION

Los

Angeles Superior Court Case # 24BBCV00120

MP: Defendant Los Angeles County Metropolitan Transportation

Authority

RP: Plaintiff Yofiel Bibi

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Yofiel

Bibi, a minor, by and through his Guardian Ad Litem, Sharon Bibi ("Plaintiff") alleges that on September 11, 2023 at approximately 8:00 p.m., he was riding a non-electric scooter at the Chandler Boulevard and Bellaire Avenue intersection in Valley Village. As Plaintiff turned left, he was struck by a bus operated by Defendant Los Angeles County Metropolitan Transportation Authority ("LACMTA"). Plaintiff asserts that he submitted government claims with Defendants City of Los Angeles ("City") and County of Los Angeles ("County"), but City and County each denied his claims.

The

Complaint, filed January 16, 2024, alleges: (1) Negligence – Motor Vehicle; (2) Negligence (Gov. Code, § 815.2(a)); (3) Negligence – Premises Liability; (4) General Negligence; and (5) Dangerous Condition of Public Property (Gov. Code, § 835). On April 6, 2026, Plaintiff named Woods Maintenance Services, Inc. (Doe 1, "Woods").

B.

Cross-Complaint

On April

17, 2024, City filed a cross-complaint against LACMTA for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On March

27, 2026, LACMTA filed a cross-complaint against Woods for: (1) Indemnification; (2) Apportionment of Fault; (3) Declaratory Relief; and (4) Contractual Defense and Indemnification.

MOTION

ON CALENDAR:

On June

1, 2026, LACMTA filed a Motion for Reconsideration of the Court's Ruling on Plaintiff's Motion to Compel Deposition of LACMTA's Employees. On June 12, 2026, Plaintiff filed an opposition. On June 18, 2026, LACMTA filed a reply.

LEGAL

STANDARD:

C.C.P. §

1008(a) states: "(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

ANALYSIS:

A.

Relevant

Background – May 22, 2026 Order

On May

22, 2026, the Court granted Plaintiff's Motion to Compel LACMTA's PMQ Deposition. LACTMA does not seek reconsideration of the PMQ order.

That same

day, the Court denied Plaintiff's Motion to Compel the Deposition of LACMTA's Employees as to Jose Saucedo, but granted the remainder of the motion as to the remaining eleven witnesses. The noticed depositions were purportedly related to LACMTA employees who had information about Mario Montoya's training, competence, facts about the collision, and liability:

1.

Jose Saucedo – The

Court denied the motion as to Jose Saucedo.

2.

Mr. Gomez (as

identified on the LACMTA 20-day Training Record) for February 23, 2026

3.

Lewis Simms (as identified by that name on the LACMTA 20-day Training Record, or the person otherwise named in entries 1-5) – LACMTA agreed to produce this witness.

4.

T. Simmon (as identified on the LACMTA Training & Development Sheet) – LACMTA agreed to produce this witness.

5.

Gary Ross (as identified on Incident Form Report)

6.

Manager Melissa Williams (as identified on Incident Form Report)

7.

Roman Alarcon (as identified on Incident Form Report)

8.

Mr. DeJoseph (as identified on Incident Form Report)

9.

Alfonso Munoz (as identified on Incident Form Report) – LACMTA agreed to produce this witness.

10.

Deckar Alexander (as identified on Incident Form Report) – LACMTA agreed to produce this witness.

11.

Sam Hooper (as identified on Incident Form Report)

12.

Derek Brown (as
identified on Incident Form Report)

(May 22, 2026 Minute Order at
p.5.) The Court indicated that at the
hearing, LACMTA's counsel was amenable to producing: (2) Mr. Gomez, (3) Lewis
Simms, (4) T. Simmon, (9) Alfonso Munoz, and (10) Deckar Alexander, but
objected to the remaining employees. (Id.
at p.6.)

B.

Discussion

LACMTA argues that the Court's
May 22, 2026 order requires it to produce for deposition employees and retained
third-party investigators who have no personal knowledge of the incident and
that they mostly investigated the incident in conjunction with and under the
direction of LACMTA's attorneys in anticipation of litigation, such that
compelling the depositions violates the attorney-client privilege and attorney
work product doctrine. It also argues that the identities of some persons in
the Order were impermissibly obtained by Woods' intentional production of
documents to Plaintiff's counsel, which Plaintiff and Woods knew were
privileged. LACMTA claims the documents
were identified in its October 21, 2025 and November 14, 2025 privilege logs,
and the privileges were reasserted on April 7, 2026.

The Court notes that Plaintiff

filed his motion on March 2, 2026, which LACMTA opposed on May 11 and 12, 2026. The parties' counsel orally argued at
the May
22, 2026 hearing and the Court issued its final ruling on the submitted matter
after taking into consideration the parties' written briefs and oral arguments.

Other than citing to section

1008(a) in the notice of motion, there is no further discussion by LACMTA
regarding the requisite factors for reconsideration. LACMTA has not shown what new or different
facts, circumstances, or law apply for the Court to reconsider its prior
order.

First, LACMTA

has not identified any new law. Rather, it relies on existing case law regarding the attorney-client privilege and attorney work product doctrine. Such citations do not amount to new or different law for the purposes of a section 1008 motion. (*Baldwin v. Home Sav. of Am.* (1997) 59 Cal.App.4th 1192, 1196 [stating it is not “new” law for purposes of a reconsideration motion when the law existed prior to the court’s ruling on the motion at issue].)

Next, LACMTA argues that it asserted certain documents were privileged in its privilege log and that the employees identified in the deposition notices and the Court’s prior order were from privileged documents. LACMTA provides the declaration of Alberto Vasquez (Manager, General Liability Claim) in support of its Motion for Reconsideration. Mr. Vasquez states that the remaining employees were not percipient witnesses to the incident and were only involved through LACMTA’s post-incident investigation and claims-handling process. (Vasquez Decl., ¶6.) LACMTA identifies: (5) Gary Ross as its accident investigator who performed work during the claims and litigation response process; (6) Manager Melissa Williams as the Bus Operator Control employee; (7) Roman Alarcon was an executive level employee; (8) Mr. DeJoseph could not be identified by LACMTA’s records; and (11)/(12) Sam Hooper and Derek Brown were third-party accident investigators for post-incident investigation of the incident—none of whom witnessed the subject incident. (*Id.*, ¶¶7-8, 11-15.) LACMTA thus argues that the information sought would be subject to the attorney-client privilege. (In Plaintiff’s opposition to the reconsideration motion, Plaintiff reiterates the reasons he seeks to depose these individuals as already argued in his prior motion to compel. As the Court need not get into the substantive merits of the prior motion, the Court declines to summarize Plaintiff’s justification for the depositions here.)

However, LACMTA was aware of these facts prior to and by the time it filed its opposition papers and the hearing on the motion to compel the employees’ depositions. LACMTA’s motion for reconsideration repeats that it told Plaintiff multiple times that Plaintiff was using improperly produced materials to seek depositions that it had already explained were improper. (See e.g., Mot. at pp.5-6, 9:9-15, 16:7-9.) Thus, it is unclear why LACMTA did not raise these arguments regarding its own privilege log and attorney-client privilege/attorney work product in its opposition brief or at the hearing on the underlying motion. “A motion for reconsideration must be based on

new or different facts, circumstances or law [citation], and facts of which the party seeking reconsideration was aware at the time of the original ruling are not 'new or different.' [Citation.] In addition, a party must provide a satisfactory explanation for failing to offer the evidence in the first instance." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.)

A

review of LACMTA's opposition to Plaintiff's motion to compel the deposition of LACMTA's employees argued that it did not refuse to produce employees for their depositions but was engaging in a good faith effort to coordinate overlapping and overbroad discovery, some of the noticed employees were not proper deponents, Plaintiff sought the same testimony twice through employee and PMQ depositions, it already produced knowledgeable witnesses on the issues, and it sought to coordinate the deposition in light of Woods' entry into the case. While there was a reference to the attorney-client privilege/attorney work product doctrine as to Sam Hooper and Derek Brown in Thomas H. Citron's declaration at paragraph 8(f), there was no further discussion on this ground in LACMTA's opposition papers to the underlying motion.

Finally,

in reply, LACMTA states that on June 9, 2026, Plaintiff served the Third Amended Notice, noticing only the depositions of Mr. Gomez, Lewis Simms, T. Simmon, Alfonso Munoz, and Deckar Alexander—the same five employees LACMTA already agreed to produce—and argues that the Court should therefore modify its May 22, 2026 order to narrow it to these individuals only. However, the fact that Plaintiff served this Third Amended Notice as to these five uncontested employees does not mean that Plaintiff has waived its right to seek the depositions of the other remaining employees as stated in the Court's May 22, 2026 order. Rather, Plaintiff served his opposition on June 12, 2026 (after the Third Amended Notice), opposing the reconsideration motion and LACMTA's withholding of the employee depositions. Thus, the Court declines to construe Plaintiff's Third Amended Notice of five of the employees as a waiver of the remaining employee depositions.

For

these reasons, the Motion for Reconsideration is denied. The Court notes that producing these employees for their depositions does not mean that LACMTA and its counsel are barred from raising objections at the deposition. If there are legitimate objections based on the attorney-client privilege and/or attorney work product doctrine, then those

objections may be raised at the time of the depositions.

Plaintiff

requests \$950 in sanctions against LACMTA and its counsel of record for misuse of the discovery process (= 3 hours for the opposition). (Schultz Decl., ¶139.) The Court declines to award discovery sanctions in connection with this motion for reconsideration.

RULING:

In the

event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Los Angeles County Metropolitan Transportation Authority's Motion for Reconsideration came on regularly for hearing on June 26, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

Motion FOR RECONSIDERATION IS DENIED.

SANCTIONS

ARE DENIED.

PLAINTIFF

TO GIVE NOTICE.

IT IS SO

ORDERED.